

IN THE SUPREME COURT OF INDIA

Civil Appeal No. 6200/2024

Date of Decision: 25-06-2024

Energia Infra Ltd ... Appellant

VERSUS

Power Grid Corp ... Respondent

FACTS OF THE CASE:

1. Enforcement of arbitral award under Section 36 vs challenge under Section 34.

ISSUES:

1. Scope of patent illegality ground under Section 34.

REASONING & DECISION:

Courts cannot re-appreciate evidence to substitute arbitrator view.

RATIO DECIDENDI:

Patent illegality must go to root of matter, not mere misconstruction of contract.

DECISION:

Section 34 challenge dismissed; award enforced.